CAUSE NO. D-1-GN-23-008855

SEATTLE CHILDREN'S HOSPITAL	§	**IN THE DISTRICT COURT**
	§	
Plaintiff,	§	
	§	
v.	§	**98th JUDICIAL DISTRICT**
	§	
OFFICE OF THE ATTORNEY GENERAL OF THE STATE OF TEXAS	§	
	§	
Defendant.	§	**TRAVIS COUNTY, TEXAS**

JOINT MOTION TO DISMISS

TO THE HONORABLE JUDGE OF SAID COURT:

Plaintiff, Seattle Children's Hospital together with Defendant Office of the Attorney General of the State of Texas jointly move this court to dismiss this matter, and would respectfully show the court the following:

I.

The parties have agreed that Seattle Children's Hospital shall voluntarily withdraw its registration to Transact Business in the State of Texas and shall file a certificate of withdrawal with the Texas Secretary of State pursuant to section 9.011 of the Texas Business Organizations Code on or before April 26, 2024. In consideration of that withdrawal, the Parties have further agreed that Office of the Attorney General of the State of Texas shall rescind its Civil Investigative Demand and its Request for Sworn Written Declaration to Seattle Children's Hospital served on November 20, 2023.

Having reached these agreements the parties state that they have satisfactorily compromised and settled all matters in dispute in this case.

The parties further agree that claims and requests for relief, including Plaintiff Seattle Children's Hospital's Special Appearance and Subject Thereto, First Amended Petition to Set Aside Civil Investigative Demands or in the Alternative, Request for Extension of Time to Respond and Request to Modify Demand, and Defendant Office of the Attorney General's Motion for Leave to File Counterclaim in the Nature of Quo Warranto, are rendered moot as a result of the parties' agreements and should be dismissed in their entirety, with all costs to be taxed against the party incurring same.

II.

WHEREFORE, PREMISES CONSIDERED, Plaintiff, Seattle Children's Hospital together with the Office of the Attorney General of the State of Texas, move the court to dismiss this cause, with costs taxed against the party incurring those costs.

Respectfully submitted,

GERMER BEAMAN & BROWN PLLC
One Barton Skyway
1501 S. Mopac Expy., Suite A400
Austin, Texas 78746
(512) 472-0288
(512) 472-9280 (Fax)

By: _____
Missy Atwood
State Bar No. 01428020
matwood@germer-austin.com

CORR CRONIN LLP
Jeffrey Coopersmith (*Pro hac vice pending*)
1015 Second Avenue, Floor 10
Seattle, Washington 98104
(206) 625-8600
(206) 625-0900 (Fax)
jcoopersmith@corrcronin.com
ATTORNEYS FOR PLAINTIFF

SEATTLE CHILDREN'S HOSPITAL

KEN PAXTON
Attorney General of Texas
BRENT WEBSTER
First Assistant Attorney General
JAMES LLOYD
Deputy Attorney General for Civil Litigation
RYAN S. BAASCH
Division Chief, Consumer Protection Division



JASON C. MCKENNEY
State Bar No. 24070245
Assistant Attorney General
Office of the Attorney General
Consumer Protection Division
12221 Merit Drive, Ste. 650
Dallas, Texas 75251
Jason.McKenney@oag.texas.gov
Tel: 214-290-8808
Fax: 214-969-7615

DAVID G. SHATTO
State Bar No. 24104114
Assistant Attorney General
Consumer Protection Division
Office of the Attorney General
P.O. Box 12548
Austin, Texas 78711
David.Shatto@oag.texas.gov
Tel: 512-475-4656
Fax: 512-473-8301
ATTORNEYS FOR THE OFFICE OF THE ATTORNEY GENERAL OF THE STATE OF TEXAS